



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DEC 8 2000

DOT-E 10239
(THIRD REVISION)

EXPIRATION DATE: November 30, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: Honeywell International Inc.
Morristown, NJ
(Former Grantee: Allied Signal Inc.)

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of DOT specification 111A100W5 tank cars containing a hazardous material identified in paragraph 6, equipped with a surge baffle in the safety vent assembly. This exemption provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 179.15.
5. BASIS: This exemption is based on the application of Honeywell International Inc. dated October 26, 2000, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/Hazardous Materials	Hazard Class/ Division	Identification number	Packing Group
Hydrochloric Acid, solution	8	UN 1789	II
Zinc Chloride, solution	8	UN 1840	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) Packages prescribed are DOT 111A100W5 tank cars for the materials specified in paragraph 6, except that the tank cars are equipped with a surge baffle in the safety vent assembly.

(2) The surge baffle may not reduce the required minimum flow capacity of the pressure relief device.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. MARKING - Each tank car must be marked "DOT-E 10239" in four inch letters and numerals on a contrasting background above the DOT specification number.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

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10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety Assurance and Compliance, RRS-12
Hazardous Materials Division, Room 8326
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR § 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590 Attention: DHM-31.

The original of this exemption is on file at the above office.
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